

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/15/26      TIME: 1:30 P.M.      DEPT: H      CASE NO: CV0002364

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

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|-------------------------------------------|--|
| PLAINTIFF:      STEPHAN WEIBEL, ET AL     |  |
| vs.                                       |  |
| DEFENDANT:    OSHIORENOYA AGABI,<br>ET AL |  |

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NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

**RULING**

Plaintiff Stephen Wiebel has filed a motion to compel third parties Arthur and Anna Manseau to comply with this Court’s December 31, 2025 order to turn over \$21,480 in funds received from the sale of abandoned personal property. The Manseaus assert that they should not have to turn over these funds because they needed to pay \$20,000 to clean the premises left behind by Defendant Oshiorenoya Agabi.

Section 1990.03 of the Civil Code requires that after a tenancy has terminated, a landlord must give written notice to the tenant of the sale of any abandoned property left behind and to any other person the landlord reasonably believes to be the owner of the property.

Wiebel’s counsel set forth a declaration asserting that he was in contact with the real estate brokers regarding the abandoned property and that they discussed the lien on the property. However, the property was sold without notice to Wiebel’s counsel. The Manseaus do not dispute that they were aware that Wiebel had an interest in the property.

Accordingly, the Manseaus are required to comply with the turnover order issued by this Court on December 31, 2025.

***All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.***

***The Zoom appearance information for July, 2026 is as follows:***

***<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNgEGafG.1>***

Meeting ID: 161 548 7764

Passcode: 502070

***If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>***

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/15/26      TIME: 1:30 P.M.      DEPT: H      CASE NO: CV0003631

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

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PLAINTIFF:      CHRISTOPER J. EMGE, ET  
AL

vs.

DEFENDANT:    PHILIP BUNDSCHU, ET  
AL

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NATURE OF PROCEEDINGS: MOTION – OTHER: FOR AN ORDER TO DISCHARGE  
GUARDIAN AD LITEM

**RULING**

Rebecca Guyette’s motion to be discharged as guardian ad litem is granted.

***Procedural Background***

Plaintiffs Christopher J. Emge and Kimberly Emge (the “Emges”) allege that they own real property adjoining the property at 421 The Alameda (the “Property”) owned by the Mary F. Bundschu Revocable Trust, dated March 21, 1989 (the “Trust”). Defendant Ellen B. McKnight (“Ellen”) has been the Trustee of the Trust for at least some of the relevant time period. Ellen’s brother, Defendant Philip Bundschu II (“Phil”), resides at the Property. The Emges allege that since Phil moved onto the Property in 2003, he has had outbursts that communicate violence, aggressiveness, hostility and anger, often when facing the Emges’ property. The Emges assert causes of action for private nuisance, public nuisance, and nuisance per se.

On April 8, 2025, the Court appointed Rebecca Guyette as guardian ad litem for Phil.

The Emges filed an Amendment to their Complaint on June 26, 2025.

On January 8, 2026, Ellen’s daughter filed a declaration advising that the Trustee was not competent and that a successor trustee would be appointed through the probate process. The status of that process as of the date of this ruling is unclear.

On November 19, 2025, Ms. Guyette filed a motion to recover attorney’s fees under Probate Code Section 1003(c). Ms. Guyette argued among other things that payment of her fees should be split equally between the Trust, which authorizes expenditures for Phil’s benefit, and by the Emges because they were the parties who asked for the appointment of a guardian ad litem. Both the Trust and the Emges opposed the motion. On March 2, 2026, the Court entered